

From: Jacob Bevier bevier19jac@icloud.com
Subject: Fwd: Term Sheet re: Dumpster Diver
Date: March 3, 2025 at 10:13:39 AM
To: Abraganini@gmail.com

Sent from my iPhone

Begin forwarded message:

From: Chiquita Banks <chiquita@bankableconsultants.com>
Date: February 24, 2025 at 1:51:01PM EST
To: Jacob Bevier <bevier19jac@icloud.com>
Subject: Re: Term Sheet re: Dumpster Diver

Ok. Please note that the only royalties that the company will make is for the exploitation of the patent. And he requested ALL of those royalties. His proposal doesn't make sense and leaves you with nothing. I know that you can still use the patent in other ways BUT realistically, you should receive royalties off ALL uses of the patent, including the exploitation of it for the Dumpster Diver.

If you don't believe me, I can connect you with a friend who is also a client that has a successful startup (software) and has venture capital investors.

I'm a finance attorney and the deal that he proposed was not good/acceptable.

I will at the end of the month so I will send you my bill for work performed thus far. Just email me an update when you can and protect yourself.

Take care.

CWB

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From: Jacob Bevier <bevier19jac@icloud.com>
Sent: Monday, February 24, 2025 1:44:02 PM

To: Chiquita Banks <chiquita@bankableconsultants.com>

Subject: Re: Term Sheet re: Dumpster Diver

Okay thanks,

I'm supposed to talk to John on Wednesday because I don't think they understand what I'm envisioning. John doesn't want any of the business he already has so much going on, I'll have more for you Wednesday. He asked if I even look at the terms he gave me because nothing aligned. I'm gonna talk to him and go from there. And they don't want royalties in the patent just for each product sold.

On Feb 24, 2025, at 1:04 PM, Chiquita Banks <chiquita@bankableconsultants.com> wrote:

Hi Jacob, circling back on this matter. Do you want me to reach out to JB? Or have you had conversations with him separately? From a business perspective, I definitely have no issue with you excluding me from any of your conversations- this is your business!

However, I do want to advise you that the terms of his original proposal are appalling (i.e., no royalties for you as the inventor, you signing over the patent to the business without compensation, JB serving as the managing member/partner of the business, and the remainder of the Braginis receiving royalties for a minimal amount of work and no capital input). I'm advising you not to accept that offer even if you don't want my input/advice for the remainder of your negotiations.

Please respond and let me know where you've landed.

Thanks.

Chiquita Woolfolk Banks, Esq.

chiquita@bankableconsultants.com

From: Jacob Bevier <bevier19jac@icloud.com>

Sent: Tuesday, February 18, 2025 1:20 PM

To: Chiquita Banks <chiquita@bankableconsultants.com>

Subject: Re: Term Sheet re: Dumpster Diver

Let me think about it for a little while, I have a lot going on and can't really focus on this right now.

Sorry let me get back to you

Very respectfully,

On Feb 18, 2025, at 10:01 AM, Chiquita Banks <chiquita@bankableconsultants.com> wrote:

Jacob, this is disappointing but not unusual in negotiations. Would you like me to put together all his original points and our counters to be discussed with John? That may help him to better understand where we were coming from with our counters.

I think it's a bit disrespectful that he didn't even grace my email with a response but he has the leverage so he can do that.

Would you like to proceed in that manner?

CWB

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From: Jacob Bevier <bevier19jac@icloud.com>

Sent: Tuesday, February 18, 2025 9:46:33 AM

To: Chiquita Banks <chiquita@bankableconsultants.com>

Subject: Fwd: Term Sheet re: Dumpster Diver

Sent from my iPhone

Begin forwarded message:

From: jbglm2@gmail.com

Date: February 18, 2025 at 7:49:35 AM EST

To: bevier19jac@icloud.com

Cc: Apollo Braganini <abraganini@gmail.com>, Sarah Braganini <sarahjbraganini@gmail.com>

Subject: RE: Term Sheet re: Dumpster Diver

Jacob,

I have attached the term sheet that was sent to me yesterday. Unfortunately, it does not line up with my original offer which is also attached.

I am confident that your invention will be successful if:

- A cost-effective prototype can be developed
- A reliable manufacturer can be engaged
- A marketing plan can be developed that generates the proforma sales
- The marketing plan is executed as planned
- Repeat sales occur
- Replacement or competitive products do not erode the enterprise

The likelihood that one or more of these risks relegates your plan to failure is high. Since I have failed many times in various business ventures, I always plan accordingly going in.

My goal in your project is to recover my investment and collect a royalty. I have no interest in running the company. I can provide advisory support and general business management services, but I have no experience in the disposal business.

I also go into every partnership venture with up front provisions that allow the parties to part without conflict down the road. You can take me out of the deal at any time and so can I.

My offer to you gives me control of the pieces I need to have in order to accept the risk. If the proposal that Chiquita sent us yesterday is your counteroffer or the deal you are looking for, I must respectfully decline.

I reread my original proposal, and I didn't see anything in it that I would want or agree to change.

You are likely able to find another source of venture capital as your invention is very attractive and interesting, but if you want us involved, we will have to circle back to the proposal I sent.

John Braganini

269-330-4205

From: Chiquita Banks <chiquita@bankableconsultants.com>

Sent: Monday, February 17, 2025 1:29 PM

To: jbglm2@gmail.com; abraganini@gmail.com; sarahjbraganini@gmail.com

Cc: Jacob Bevier <bevier19jac@icloud.com>; admin

<admin@bankableconsultants.com>

Subject: Term Sheet re: Dumpster Diver

John/Apollo/Sarah:

Wonderful to e-meet you all! I've been working with Jacob to create a term sheet for the investment in the product currently named Dumpster Diver; attached please find the initial draft of that document. I've highlighted the funding schedule in yellow as that's to be discussed and based on the project's needs.

Please review and let us know if you have any questions. We're open to hopping on a call to discuss your thoughts or are comfortable with email if that's your preference. If

you want to chat, please share your availability of Wednesday and Thursday of this week. My admin will find a common time for us to hop on a call with Jacob.

Talk soon.

Chiquita Woolfolk Banks, Esq.

chiquita@bankableconsultants.com

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